

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

USL AUTO EXPORTING INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*.

DOCKET NO. 23-13

Served: March 18, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

MEMORANDUM ORDER DENYING COMPLAINANT’S MOTION FOR DEFAULT JUDGMENT

On February 12, 2024, Complainant filed a motion for default judgment, arguing that Respondent’s failure to cooperate in preparing the joint status report warranted entry of default. Observing that both parties have failed to follow the Commission’s rules in advancing this case, I ordered the parties to appear for a status conference on March 13, 2024.

At the conference, I observed that the parties had not familiarized themselves with the Commission’s rules or my Initial Order:

- Complainant failed to comply with Rule 71, which imposes a duty to confer on non-dispositive motions, prior to filing a motion to compel.
- Complainant filed a motion for summary judgment that did not comply with the Initial Order – it was not accompanied by a separate statement of facts, the facts did not contain citations to any evidence, and the exhibits did not have page numbers.
- After I ordered the parties to file a joint status report on February 7, 2024, Respondent’s counsel completed the report and emailed it to Complainant on February 8, 2024, and Complainant decided not to file it since it was a day late.
- Respondent emailed a courtesy copy of its opposition to the motion for summary judgment to the Office of Administrative Law Judges but did not file it with the Office of the Secretary.

Given the parties’ failure to adhere to the Rules and the Initial Order, I made the following rulings at the status conference:

ORDERED that the parties review the Initial Order and the Commission’s Rules;

ORDERED that Respondent file its opposition to the motion for summary judgment by March 13, 2024;

ORDERED that the parties file the Joint Status Report by March 14, 2024; and

ORDERED that Respondent's opposition to the motion for default, if any, must be served by March 14, 2024.

Given that Respondent appeared at the status conference, that the failure to file an opposition to the motion for summary judgment appears to be inadvertent, and that Respondent has corrected the noted deficiencies as ordered, the motion for default judgment is **DENIED**. 46 C.F.R. § 502.65(a). As I stated at the status conference, any further failure to comply with Commission rules or my orders may result in adverse inferences, default, or dismissal.

Alex Michael
Chintella

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Michael Chintella
Date: 2024.03.18
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Alex M. Chintella
Administrative Law Judge